

Civil Code section 3294. (*Delaney v. Baker* (1999) 20 Cal. 4th 23, 31.) The latter three categories involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature. (*Ibid.*, citing Cal. Civ. Code §3294(c).) Recklessness refers to a subjective state of culpability greater than simple negligence, which has been described as a deliberate disregard of the high degree of probability that an injury will occur. (*Ibid.*) Recklessness, unlike negligence, involves more than inadvertence, incompetence, unskillfulness, or a failure to take precautions but rather rises to the level of a conscious choice of a course of action with knowledge of the serious danger to others involved in it. (*Id.* at 31-32.)

Defendant's motion quotes subdivision (b) of Civil Code, section 3294, and argues that Shields cannot be held liable for the acts of others. As discussed above, there are possible avenues of liability here that do not include such a vicarious liability finding. One such example is the participation of Shields in any understaffing policies that might have contributed to plaintiff's claims. Because the motion papers leave open disputes of fact related to this possibility, as mentioned above with respect to negligence, summary adjudication is denied.

D. Fourth Cause of Action: Negligent Infliction of Emotional Distress

Similar to the above discussion of negligence per se, there is no independent tort of negligent infliction of emotional distress; rather, the tort is negligence. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205.) For the reasons discussed above in regard to that cause of action, summary adjudication is denied with respect to Negligent Infliction of Emotional Distress.

E. Punitive Damages

While the Court maintains some degree of skepticism that plaintiff can show entitlement to punitive damages in light of the clear and convincing standard, such damages are warranted where a plaintiff shows liability under the Elder Abuse and Dependent Adult Civil Protection Act. Because the motion is denied with respect to that cause of action, the motion is also denied with respect to punitive damages.

17. 9:00 AM CASE NUMBER: MSC22-00247
CASE NAME: LAS MONTANAS MARKET VS. GUTIERREZ
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: LAS MONTANAS MARKET, INC
TENTATIVE RULING:

Notice to withdrawal Motion to Enforce Settlement Agreement has been filed on the case. This hearing has been **vacated**. No appearance is required on June 24, 2026.